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File No.: EXP202301545

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the claimant) exercised the right of access before the GOVERNMENT DELEGATION IN MADRID (hereinafter, the respondent).

The claimant states that on October 20, 2022, he exercised the right of access before the Government Delegation in Madrid, as the controller of the files of the Treatment "DRUGS," whose purpose is "the management of drugs seized by the State Security Forces and Corps, Local Police, Customs Surveillance, and Penitentiary Centers, of which information is provided to judicial and administrative authorities (Government Delegation, City Councils), for sanction if appropriate."

He claims that this request has not been answered.

Along with the complaint, he submits the registered document to exercise the right.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the MINISTRY OF TERRITORIAL POLICY for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

On February 10, 2023, a document from the Ministry of Territorial Policy was received by this Agency. Undersecretariat. Technical General Secretariat, in which, by the Data Protection Delegate, it is stated: "Information request from this Agency, dated February 9, 2023, is acknowledged (...) and it is informed that, on this same date, it is sent to the General Secretariat of the Government Delegation in Madrid, responsible for said treatment."

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow understanding the claims of the claimant to be satisfied. Consequently, on March 27, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint filed against the Government Delegation in Madrid for processing.

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The aforementioned agreement granted the respondent a hearing procedure, so that within ten working days, it could present the allegations it deemed appropriate, having refused electronic notification by the Government Delegation in Madrid.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

On September 20, 2023, the director notified the Minister of Justice stating:

"1. That the file PD/00088/2023 regarding the exercise of the right of access under Article 15 of

Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data, and repealing Directive 95/46/EC, is being processed in this Spanish Agency for the Protection of Data, against the GOVERNMENT DELEGATION IN MADRID.

2. That the reason for abstention provided for in Article 23.2.b) of Law 40/2015, of October 1, on the Legal Regime of the Public Sector, applies.

Therefore, in accordance with the above, I abstain from intervening in the aforementioned preliminary investigation proceedings and notify the Minister of Justice as provided by Law 3/2015, of March 30, regulating the exercise of senior positions in the General State Administration."

Article 48.2 of the LOPDGDD establishes that:

"2. The Presidency of the Spanish Agency for the Protection of Data shall be assisted by a Deputy to whom it may delegate its functions, except for those related to the procedures regulated by Title VIII of this organic law, and who shall replace it in the exercise of the same under the terms provided in the Organic Statute of the Spanish Agency for the Protection of Data.

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Both shall exercise their functions with full independence and objectivity and shall not be subject to any instructions in their performance. The legislation regulating the exercise of high office in the General Administration of the State shall be applicable to them.

In cases of absence, vacancy, or illness of the person holding the Presidency, or when any of the grounds for abstention or disqualification provided for in Article 23 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector, apply to them, the exercise of the competencies related to the procedures regulated by Title VIII of this organic law shall be assumed by the person holding the executive body that performs inspection functions. In the event that any of the aforementioned circumstances also apply to that person, the exercise of the affected competencies shall be assumed by the holders of the executive bodies at the level of deputy director general, in the order established in the Statute.

The exercise of the remaining competencies shall be assumed by the Deputy in the terms provided in the Organic Statute of the Spanish Agency for Data Protection and, failing that, by the holders of the executive bodies at the level of deputy director general, in the order established in the Statute.

In this case, the Deputy Director General of Data Inspection assumes the exercise of the competencies due to the abstention of the Director.

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the Ministry of Territorial Policy for analysis, requesting a response to this Agency within one month and certifying that the necessary response had been provided to the complainant.

Since the Ministry of Territorial Policy responded to such forwarding indicating that it "is referred to the General Secretariat of the Government Delegation in Madrid, responsible for that processing" and that

this body did not provide any information in this regard, with

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Date: March 27, 2023, for the purposes provided in Article 64.1 and 65 of the LOPDGDD, the complaint filed against the Delegation of the Government in Madrid was admitted for processing.

Such admission for processing determines the initiation of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an agreement of admission for processing, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the agreement of admission for processing was notified to the complainant. Once this period has elapsed, the interested party may consider their complaint to be upheld.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the data controller or processor to attend to the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

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IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data.”

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the data subject to specify the “data or processing activities to which the request refers.” The right shall

be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. Furthermore, the request will be considered excessive when the data subject chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the data subject.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others; that is, the right of access shall be granted in such a way that it does not affect third-party data.

V

Conclusion

In this case, after examining the documentation in the file, there is no record of any response from the respondent to the exercise of the right of access by the complainant.

The aforementioned rules do not allow the request to be disregarded as if it had not been made, leaving it without the response that the controllers are obliged to issue, even in the event that there are no data in the files or even in

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in those cases where the requirements set forth are not met, in which case the recipient of said request is also obliged to require the correction of the observed deficiencies or, where appropriate, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that a copy of the necessary communication that must be sent to the claimant informing them of the decision made regarding the exercise of rights request is not attached, it is appropriate to uphold the claim that initiated this procedure.

In view of the cited provisions and others of general application, the Deputy Director General of Data Inspection of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by Mr. A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge the GOVERNMENT DELEGATION IN MADRID with NIF S2816009A, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested right or denying it with justification indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to the GOVERNMENT DELEGATION IN MADRID.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for

Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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(...)

Deputy Director General of Inspection of the Spanish Agency for Data Protection

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